

9:00 AM

Line 2

23-CIV-01880 RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Defendant and Cross-Defendant Yiqin Wang's Motion for Summary Adjudication of FX10, LLC.'s Express Contractual Indemnity Cause of Actions of the Cross Complaint

TENTATIVE RULING:

Initially, the Court notes that Defendant Yiqin Wang (herein, "Cross-Defendant" unless another cross-defendant is specified) has not provided the address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Through his Motion for Summary Adjudication of FX10's Express Contractual Indemnity Cause of Action of Its Cross-Complaint by Cross-Defendant Yiqin Wang (the "Motion"), Cross-Defendant seeks summary adjudication of four Issues defined in the Motion.

The Motion for Summary Adjudication as to Issue No. 1 is DENIED.

The Motion for Summary Adjudication as to Issue No. 2 is DENIED.

The Motion for Summary Adjudication as to Issue No. 3 is DENIED.

The Motion for Summary Adjudication as to Issue No. 4 is DENIED.

Cross-Defendant's Request for Judicial Notice is GRANTED.

Cross-Complainants' Request for Judicial Notice is GRANTED in part, and DENIED in part.

Cross-Complainants' Evidentiary Objections in Opposition are NOT REACHED due to their impropriety, as addressed *infra*.

Cross-Defendant's Evidentiary Objections in Reply are OVERRULED.

Background

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by

her foot which was then apparently horribly mangled.

There are numerous cross-complaints in this action. The instant motion is directed to the indemnity cause of action of the Cross-complaint filed by Cross-Complainants on July 19, 2023, against Cross-Defendant and Defendant Wang and Zhao (here, the “Cross-Complaint”).

Cross-Defendant Wang seeks summary adjudication of four Issues defined in the Motion. (Code Civ. Proc., § 437c, subd. (f).) The first three Issues assert that the challenged cause of action fails under Cross-Defendant’s affirmative defenses, and the fourth Issue asserts that the Motion must be granted because Plaintiff’s claims do not arise from operation of the equipment referred to in the agreement which Cross-Defendant signed.

Legal Standards for Summary Adjudication

A motion for summary adjudication “shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).) Denial of summary adjudication is appropriate on the same grounds as is the denial of summary judgment.

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

This cross-defendant can meet his burden of showing that a cause of action is meritless, if:

- the party has shown that one or more elements of the cause of action ... cannot be established, or
- that there is a complete defense to the cause of action.

(Code Civ. Proc., § 437c, subd. (p)(2) (bullet points added).) If the cross-defendant meets this burden, then “the burden shifts to the plaintiff or cross-complainant ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*)

“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party.” (*Weiss v. People ex rel. Dep’t of Transportation* (2020) 9 Cal.5th 840, 864 (*Weiss*) (citations omitted).)

Summary judgment “is drastic and should be used with caution in order that it may not become a substitute for existing methods in the determination of issues of fact.” (*Eagle Oil & Ref. Co. v.*

Prentice (1942) 19 Cal.2d 553, 556.) Indeed, issues of fact are to be found and not determined:

By an unbroken line of decision in this state since the date of the original enactment of section 437c, the principle has become well established that issue finding rather than issue determination is the pivot upon which the summary judgment law turns.

(*Walsh v. Walsh* (1941) 18 Cal.2d 439, 441 (*Walsh*) (citations omitted).) Further:

The purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.

(*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76 (*Melamed*).) Specifically, California summary judgment law differs from federal law in that the former “continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 854-55 (*Aguilar*).) Further, the Supreme Court of California has stated that:

Language in certain decisions purportedly allowing a defendant moving for summary judgment simply to “point[]” out “an absence of evidence to support” an element of the plaintiff’s cause of action does not reflect summary judgment law as it has ever stood, and is accordingly disapproved.

(*Aguilar, supra*, 25 Cal.4th 826, 855 (citation omitted).)

The Court must consider all of the evidence and inferences reasonably drawn therefrom “in the light most favorable to” the party opposing the motion. (*Aguilar, supra*, 25 Cal.4th 826, 843.) A trial court is justified in granting summary judgment “only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried.” (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, “any doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Mateel Environmental J. Foundation v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (*Mateel*) (citations omitted).)

The Motion Is DENIED as to Issues Nos. 1-3.

Issue No. 1 is “Whether Cross-Defendant’s 16th, 22nd, 26th and 27th Affirmative Defenses constitute a complete bar to the enforcement of the indemnity clause as a matter of law. [UMF #’s 1-22]” (Notice of Motion, 2:8-9.)

The following are Cross-Defendant’s affirmative defenses here asserted as to the challenged second cause of action of the Cross-Complaint:

SIXTEENTH AFFIRMATIVE DEFENSE

That Cross-Defendant asserts that the terms of the contract is unconscionable in that the goods and services promised provided, namely an outboard motor boat, was substantially inferior to the standard of the industry or what was promised,

namely an inboard motor boat, such that the enforcement of the contract would be unethical.

(Cross-Defendant's Amended Answer, filed on December 14, 2023 (the "Answer"), 4:20-24.)

TWENTY-SECOND AFFIRMATIVE DEFENSE

That the conduct of Cross-Complainant rises to the level of gross negligence, including but not limited to unilaterally switching the inboard motor boat for an outboard motor boat, and by failing to provide adequate instruction, advice, information or training on the operation and safety rules of the outboard motor boat, which invalidates the contract.

(*Id.*, 5:25-6:2.)

TWENTY-SIXTH AFFIRMATIVE DEFENSE

That Cross-Defendant asserts that the contract cannot absolve the Cross-Complainant from liability for gross negligence. A liability release, to the extent it purports to release liability for future gross negligence, violates public policy and is unenforceable. *Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555.

TWENTY-SEVENTH AFFIRMATIVE DEFENSE

That Cross-Defendant asserts that the said contract is a standardized contract of adhesion in that the contract was imposed and drafted by the Cross-Complainant of superior bargaining strength, and it relegated to the Cross-Defendant, the subscribing party only the opportunity to adhere to the contract or reject it. *Neal v. State Farm Ins. Cos.* (1961) 188 Cal.App.2d 690, 694. The Cross-Defendant further asserts that the terms of the contract is ambiguous and that any ambiguities caused by the draftsman of the contract must be resolved against that party, namely the Cross-Complainant. *Neal v. State Farm Ins. Cos.* (1961) 188 Cal.App.2d 690, 695.

(*Id.*, 6:14-27.)

The 16th affirmative defense turns on whether the substituted outboard motorboat was substantially inferior to the industry standard or the promised inboard motor boat, such that it would be unethical, in deed, unconscionable, to enforce the contract. Cross-Defendant provides evidence tending to show that the provided boat was unsuitable for wakeboarding, and Cross-Complainants present contradictory evidence. (*See, e.g.*, Cross-Complainants' Response to Cross-Defendant's SS, UMF Nos. 5, 6, 8 (which is identical to No. 9), & 10.) The Court finds at least one disputed material fact as to Issue No. 1, as to the 16th affirmative defense, and as to UMF Nos. 5, 6, and 8-10.

The 22nd affirmative defense turns on whether Cross-Complainants were grossly negligent by switching the boat to be rented and failing adequately to train the renters on the boat's operation and safety. Cross-Defendant provides evidence tending to show that the substituted boat was unsuitable for wakeboarding as noted *supra*, and that the training was inadequate, and Cross-Complainants present contradictory evidence. (*See, e.g., id.*, UMF Nos. 14-19.) The Court finds

at least one further disputed material fact as to Issue No. 1, and as to the 22nd affirmative defense and as to UMF Nos. 14-19.

The 26th affirmative defense turns on whether a contractual release from liability for future gross negligence is unenforceable for violation of public policy. Cross-Complainants reasonably point out that whether its conduct constituted gross negligence has yet to be found. The Court agrees, this is a triable issue of material fact. Cross-Defendant argues that gross negligence may be found as a matter of law, citing authority which provides that:

Whether conduct constitutes active or passive negligence depends upon the circumstances of a given case and is ordinarily a question for the trier of fact; active negligence may be determined as a matter of law, however, when the evidence is so clear and undisputed that reasonable persons could not disagree.

(*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1995) 13 Cal.3d 622, 629 (citations omitted).) Cross-Defendant argues that his “evidence shows that the critical differences between the boats demonstrate Berryessa Water Sports’ reckless disregard for the group’s safety.” (Memorandum of Points and Authorities in Support of the Motion, 10:8-9.) However, as discussed *supra* regarding the 16th affirmative defense, evidence on this point is *not* so clear and undisputed that reasonable persons could not disagree. The Court finds at least one disputed material fact as to the 26th affirmative defense.

The 27th affirmative defense is based on two assertions: that the contract was one of adhesion due to Cross-Complainants’ superior bargaining power, and therefore unconscionable; and that its terms are ambiguous. However, as Cross-Defendant notes, unconscionability has both a procedural element to which his assertion of its adhesion applies, and a substantive element. As to the adhesion here asserted, the parties offer contradictory evidence. (*See, e.g.*, Cross-Complainants’ Response to Cross-Defendant’s SS, UMF No. 21.) On the second point, if the contract is ambiguous as Cross-Defendant asserts, then the ambiguity would be resolved by the fact-finder’s consideration of parol evidence as to the intent of the parties, and the Court does not sit as a fact-finder in ruling on this motion. The Court finds at least one further disputed material fact as to Issue No. 1, and as to the 27th affirmative defense and as to UMF No. 21.

Thus, the Court need not determine whether Cross-Defendant has met his burden on the Motion, because even if he had, it would fail due to the existence of triable issues of fact material to Issue No. 1. The second cause of action thus survives the Motion as to Issue No. 1.

Further, since Issue No. 2 also depends on the 22nd and 26th affirmative defenses, Issue No. 3 also depends on the 16th and 27th affirmative defenses, and both Issues rely on UMF Nos. 1-22, the Court finds triable issues of fact material to Issues Nos. 2 and 3 as well. The second cause of action thus survives the Motion as to Issues Nos. 2 and 3.

The Motion Is DENIED as to Issue No. 4.

Issue No. 4 is “Whether this Motion for Summary Adjudication must also be granted as a matter of law because Plaintiff Ding’s claims do not arise from the operation of the equipment referred in the agreement signed by Wang. . [UMF #’s 1-22]” (Notice of Motion, 2:17-19.)

Assuming that the “equipment” to which Cross-Defendant refers is the boat, this Issue appears to relate to whether the switch of the boat from the originally agreed to the Sea Ray results in

disconnection between Plaintiff's claims and the indemnification obligation which Cross-Complainants assert against Cross-Defendant. Cross-Defendant argues that, "[S]ince it is undisputed that the agreement was for the *inboard* motor boat which was never provided to" Cross-Defendant, his Motion should be granted as to his having no duty to defend Cross-Complainants. (Reply, 2:5-6.) Cross-Complainants assert that the term, "equipment," in the agreement is not tied to a particular boat, so that when Cross-Defendant accepted the Sea Ray, that agreement of the parties modified the rental agreement, which retained the indemnity clause. At a minimum, whether "equipment" was intended by the parties to encompass the substituted Sea Ray is a triable issue of fact. Further, since Issue No. 4 relies on UMF Nos. 1-22, the Court finds triable issues of fact material to Issue No. 4. The second cause of action thus survives the Motion as to Issue No. 4.

Moreover, in Cross-Defendant's Response to the additional material facts ("AMF") set forth in Cross-Complainants' Response to Cross-Defendant's SS, Cross-Defendant disputes each and every one of the twelve AMF, in each case (improperly) referring the Court to his Joinder in Cross-Defendant Zhao's Objections, and citing the testimony of his experts Stevick and Techeira. Thus, he shows that there are at least twelve additional disputed material facts, for at least two major reasons. First, Cross-Defendant apparently expects the Court to have sustained his Objections (all of which are directed to the Lindholm Declaration), which have been overruled, so that the Lindholm Declaration stands (its worth to be determined by the fact-finder) and is disputed by the Stevick Declaration and the Techeira Declaration. Second, even if the Court had excluded the Lindholm Declaration from its consideration, at least AMF Nos. 3, 4, 6, 9, and 11 are based on other evidence either exclusively or in addition to the Lindholm Declaration, and AMF Nos. 7 and 12 indicate that the Lindholm Declaration cites other evidence (the testimony of Deputy Hartley, and Cross-Defendant's deposition, respectively). Thus, even conservatively, the Reply demonstrates that there are at least five additional disputed issues of material fact, though Cross-Complainants do not specify the Issues to which they correspond (as Cross-Defendant also did not specify for his UMF).

Cross-Defendant's Request for Judicial Notice in Support of Motion

Cross-Defendant's Request for Judicial Notice is GRANTED as to the document submitted therewith, described as his First Amended Answer to the Cross-Complaint filed in this action (Exh. 1). (Evid. Code, § 452, subd. (d), & § 453).

However, judicial notice of this document is limited to its existence, content, and authenticity, and does not extend to the truth of the factual matters contained therein. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

Cross-Complainants' Request for Judicial Notice in Opposition

Cross-Complainants' Request for Judicial Notice is granted as to: (1) subdivisions (b), (d), and (e) of section 661 of the California Harbors and Navigation Code; and (2) subdivisions (a) and (b) of 46 U.S.C. section 30505 (2021). (Evid. Code, § 452, subd. (c), & § 453.)

The request that the Court take judicial notice of Cross-Complainants' legal argument as to how said code applies is denied.

Cross-Complainants' Improper Evidentiary Objections in Opposition

Cross-Complainants have improperly placed their evidentiary objections in their response to

Cross-Defendant's separate statement and in their Memorandum of Points and Authorities in Opposition, in violation of the California Rules of Court. (*See* Cal. Rules of Court, rules 3.1352(1), 3.1354(b) ["All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion"], 3.1354(c) ["party submitting written objections to evidence must submit with the objections a proposed order"].) Accordingly, the Court declines to rule on the objections. (*Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 [affirming trial court's refusal to rule on objections made in separate statements and to provide second chance to file objections].)

Cross-Complainants also have improperly placed evidentiary objections in their Supplemental Brief in Opposition, again lacking a proposed Order in violation of the California Rules of Court. However, the Court uses its discretion to consider the supplemental arguments for which it procedurally provided, and finds them to be more pertinent to the credibility and weight that should be accorded to the Stevick Declaration and to the Techeira Declaration than to the admissibility of either. Such determinations of credibility and weight are for the fact-finder, to whom Cross-Complainants may present these arguments.

Cross-Defendant's Evidentiary Objections in Reply

Cross-Defendant joins in Cross-Defendant Zhao's Objections (the "Objections"; *see* Joinder, filed on July 28, 2026), all of which are directed to the entirety of the Declaration of Marine Engineer and Naval Architect Steve Lindholm, P.E., P.M.P., NAMS-CMS, in Opposition (the "Lindholm Declaration").

The Objections does not follow the required form (Cal. Rules of Court, rule 1354), so that the exact number of Objections therein asserted and the legal bases of each are unclear.

The Objections is essentially an essay about why the challenged Declaration should be disregarded. The argument is primarily that the declarant acts unethically by ignoring that design should account for human error when he concludes that the Sea Ray, which everyone concedes to have lacked mechanical defects, was fit for its intended purpose because of the warning stickers it bore and the instruction about it given to the driver, so that the accident was caused solely by Cross-Defendant's driving thereof.

The legal bases for the Objections are not clearly set forth with citations to the Evidence Code, but the point seems to be that the declarant did not apply his expertise in rendering his opinion, instead: failing to incorporate a wealth of scientific information; showing no application of the scientific method; repeating many irrelevant facts; and merely rubber-stamping the Sheriff's report, which is inadmissible hearsay. (*See, e.g.,* Objections, 2:5-18, & 4:13-16.)

To the extent to which the argument may sound in section 801 of the Evidence Code, it is unpersuasive in that: the Objections cite a great deal of technical matter which "is sufficiently beyond common experience that the opinion of an expert would assist the trier of fact" (Evid. Code, § 801, subd. (a)); and even if the Declaration relied on inadmissible hearsay, an expert opinion may do so (*id.*, § 801, subd. (b)).

Moreover, the Objections go more to the credibility and weight that should be accorded to the Lindholm Declaration than to its admissibility.

In any event, this motion for summary adjudication is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

23-CIV-01880 RUI DING VS. YIQIN WANG, ET AL

RUI DING
YIQIN WANG

JEREMY D. CLOYD
PHILIP A. SEGAL

Defendant, Cross-Defendant, and Cross-Complainant Yincheng Zhao's (Amended) Motion for Summary Adjudication on FX10, LLC.'s Express Contractual Indemnity Cause of Action of the Cross Complaint

TENTATIVE RULING:

I. Summary of Facts / Pertinent Procedural History

The Complaint alleges that in a catastrophic boating accident, Plaintiff Rui Ding had been wakeboarding behind a motorboat that Cross-Defendant Yiqin Wang and Cross-Defendant Yincheng Zhao had rented from Cross-Complainants FX 10 Int'l, Inc., dba Berryessa Water Sports, and Plan B Equipment Rentals LLC (herein, "Cross-Complainants" or "FX10" unless another cross-complainant is specified), when plaintiff got sucked into the propeller of its outboard motor by her foot which was then apparently horribly mangled.

There are numerous cross-complaints in this action. The instant motion is directed to the second cause of action for action (for express contractual indemnity) of that filed by Cross-Complainants on July 19, 2023, against Cross-Defendant and Defendant Zhao (here, the "Cross-Complaint"), and to the enforceability of the contract underlying that cause of action.

Through his Motion for Summary Adjudication of FX10's Express Contractual Indemnity Cause of Action of Its Cross-Complaint by Cross-Defendant Yincheng Zhao (the "Motion"), Cross-Defendant seeks summary adjudication of two issues defined in the Motion. (Code Civ. Proc., § 437c, subd. (f).) The first issue is defined as whether FX10's Express Contractual Indemnity cause of action in its Cross-Complaint should be voided as a matter of law, and the second issue is defined as whether FX10 breached the rental agreement and therefore said contract is terminated and Zhao is freed from any obligations arising thereunder.

II. Governing Law

A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).) Denial of summary adjudication is appropriate on the same grounds as is the denial of summary judgment.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the
